Broadcasting Services (Licensing and Content) (Amendment) Regulations, 2022 (No. 6)

IT is hereby notified that the Minister of Information, Publicity and Broadcasting Services has, in terms of section 46 of the Broadcasting Services Act [*Chapter 12:06*], approved the following regulations made by the Broadcasting Authority of Zimbabwe Board:—

1. These regulations may be cited as the Broadcasting Services (Licensing and Content) (Amendment) Regulations, 2022 (No. 6).

2. The principal regulations are amended by the repeal of the Second Schedule and the substitution of the following—

"SECOND SCHEDULE (*Section 4*)

FEES FOR LICENCES

Free to Air National Radio Broadcasting Service

(a)	Application Fee/Renewal fee	USD2 900,00 (non-refundable)
(b)	Application Fee Public Inquiry	USD 8 700,00 (non-refundable)
(c)	Basic Licence Fee for ten years	USD23 200,00, *per annum*
(d)	Annual Regulatory fees	USD8 000,00
(e)	Frequency Fee	USD50,00 per frequency per site per month
(f)	Broadcasting Fund	USD$3 000,00, *per annum*

Provincial Commercial Radio Broadcasting Service

(a)	Application Fee/Renewal Fee	USD2 900,00 (non-refundable)
(b)	Application Fee Public Inquiry	USD8 700,00(non-refundable)
(c)	Basic Licence Fee for ten years	USD8 120,00, *per annum*
(d)	Annual Regulatory fees	USD6 000,00
(e)	Frequency Fee	USD50,00, per frequency per month
(f)	Broadcasting Fund	USD2 000,00, *per annum*

Local Commercial Radio Broadcasting Service (Expanded)

(a)	Application Fee/Renewal Fee	USD2 900,00 (non-refundable)
(b)	Application Fee Public Inquiry	USD8 700,00 (non-refundable)
(c)	Basic Licence Fee for ten years	USD6 900,00, *per annum*
(d)	Annual Regulatory fees	USD6 000,00
(e)	Frequency Fee	USD50,00, per frequency per month
(f)	Broadcasting Fund	USD2 000,00, *per annum*

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Commercial Radio Broadcasting Service

(a)	Application Fee/Renewal Fee . .	USD2 900,00 (non-refundable)
(b)	Application Fee Public Inquiry . .	USD8 700,00 (non-refundable)
(c)	Basic Licence Fee for ten years .	USD5 800,00, *per annum*
(d)	Annual Regulatory fees	USD6 000,00
(e)	Frequency Fee	USD50,00, per frequency per month
(f)	Broadcasting Fund	USD2 000,00, *per annum*

Free to air Campus Radio Broadcasting Service

(a)	Application Fee/Renewal Fee . .	USD1 450,00 (non-refundable)
(b)	Basic Licence Fee for ten years . .	USD2 400,00, *per annum*
(c)	Monthly frequency fee	USD50,00, per frequency per month

Community Radio Broadcasting Service

(a)	Application Fee	USD400,00 (non- refundable)
(b)	Basic Licence Fee for ten years . .	USD800,00, *per annum*
(c)	Monthly Frequency Fee	USD30,00, per frequency per month

Free to Air National Television Broadcasting Service

(a)	Application Fee/Renewal fee. . .	USD2 900,00 (non-refundable)
(b)	Application Fee Public Inquiry . .	USD8 700,00 (non-refundable)
(c)	Basic Licence Fee for ten years .	USD40 600,00, *per annum*
(d)	Annual Regulatory fees	USD10 000,00
(e)	Frequency Fee –	
	(i) analogue	USD120,00, per frequency per site per month
	(ii) digital	USD50,00, per frequency per site per month
(f)	Broadcasting Fund	USD4 000,00, *per annum*

Signal Carrier Licence

(a)	Application Fee/Renewal fee . .	USD2 900,00 (non-refundable)
(b)	Annual Basic Licence Fee for twenty years –	
	(i) core business	USD58 000,00, *per annum*
	(ii) ancillary service –	
	A. Core broadcasting platform	USD7 728,56, *per annum*
	B. Non-Core broadcasting . .	USD46 371,00, *per annum*
(c)	Regulatory Administration Fee, per site	USD60,00, per transmitter, *per annum*
(d)	Broadcasting Fund	A contribution of 0.5% of the audited annual gross turnover or deemed turnover payable annually

Subscription Satellite Broadcasting Services

(a)	Application Fee Initial/renewal fee .	USD2 900,00 (non-refundable)
(b)	Application Fee Public Inquiry . .	USD8 700,00 (non-refundable)

(c)	Basic Licence Fee for ten years . .	USD87 000,00, *per annum*, payable in the currency the subscription is collected
(d)	Annual Regulatory fees	2% monthly subscription turnover or deemed turnover payable monthly in the currency the subscription is collected
(e)	Broadcasting Fund	a contribution of USD58 000,00, payable in the currency the subscription is collected

Content distribution service

(a)	Application Fee/renewal fee . .	USD2 500,00 (non-refundable)
(b)	BasicLicence Fee for ten years . .	USD100 000,00, *per annum*, payable in the currency that the subscription is collected
(c)	Annual Regulatory fees . . .	2% monthly subscription turnover or deemed turnover payable monthly in the currency the subscription is collected
(d)	Broadcasting Fund . . .	a contribution of USD$50 000,00, payable in the currency the subscription is collected

Satellite Uplink

(a)	Application Fee/Renewal Fees . .	USD2 500,00 (non-refundable) for foreign service or its equivalent for local service
(b)	Basic Licence Fee for ten years—	
	(i) Commercial—	
	A. per annum . . .	USD25 000,00, for foreign service or its equivalent for local up-linking
	Annual licence fees .	2% annual gross turnover or deemed turn over payable monthly for the licence period
	B. per day per uplink provided	USD500,00 for foreign link or its equivalent for local link
	Local Link per month	USD2 000,00
	(ii) Foreign link per annum (own use)	USD25 000,00

Temporary Satellite Uplink

(a)	Application Fee/Renewal Fee . .	USD300,00 for foreign service or its equivalent for local service
(b)	Licence Fee—	
	(i) Mobile or transportable (*strictly for own feed*) –	
	Per month	USD10 000,00 in the case of a person supplying foreign services or its

		equivalent in the case of a person supplying local services
	Per day	USD1 500,00 in the case of a person supplying foreign services or its equivalent in the case of a person supplying local services.
	(ii) Portable Electronic News Gathering (*strictly for own feed)* –	
	Per month	USD6 000,00
	Per day	USD750,00
	(iii) Commercial	USD1 500,00 per day plus USD500,00 per uplink service provided
	(iv) Distribution/Programme Exchange — Arrangement per day	USD50 000,00 per day
	Subscription Cable Broadcasting	
(a)	Application Fee Initial	USD2 900,00 (non-refundable)
(b)	Application Fee Public Inquiry . . .	USD8 700,00(non-refundable)
(c)	Basic Licence Fee for ten years –	
	(i) National	USD87 000,00, *per annum* payable in the currency the subscription is collected
	(ii) Local	USD11 600,00 per location
(d)	Annual Regulatory fees	2% monthly subscription turnover or deemed turnover payable monthly (payable in the currency the subscription is collected)
(e)	Broadcasting Fund	0.5% of monthly subscription turnover or deemed turnover
	Datacasting	
(a)	Application Fee/Renewal Fee . . .	USD2 900,00 (non-refundable)
(b)	Basic Annual Licence Fee for three years	USD11 600,00, *per annum*
(c)	Frequency Fee	USD50,00, per frequency per site per month for exclusive use of television frequency
(d)	Broadcasting Fund	A contribution of 0.5% of the audited annual subscription turnover or deemed turnover
	Webcasting	
(a)	Application Fee/ Renewal Fees . .	USD2 900,00 (non-refundable)
(b)	Basic Licence Fee for three years –	
	Content provider	USD6 900,00 *per annum*
	Video on Demand	
(a)	Application Fee/ Renewal Fee . . .	USD2 900,00 (non-refundable)

(b)	Basic Licence Fee for three years . . .	USD23 200,00, *per annum*
(c)	Annual Regulatory fees	2% of monthly subscription turnover or deemed turnover payable monthly for the licence period

Open Narrowcasting (Electronic Billboard and PVA Licence)

(a)	Application Fee	USD300,00 (non-refundable)
(b)	Basic Licence Fee for one year	USD1 200,00, minimum per billboard or USD$250,00, per display per year for other types of displays

Diffusion

Basic Licence Fee for one year –

(a)	Banks, five-star hotels and other businesses	USD11 600,00, *per annum*
(b)	Four-star hotels	USD6 900,00, *per annum*
(c)	Three-star hotels	USD4 600,00, *per annum*
(d)	Two-star hotels	USD2 300,00, *per annum*
(e)	Other hotels and lodges and other business premises	USD1 200,00, *per annum*
(f)	Service provider	USD1 159,00, *per annum*

Type approval and registration of Set Top Box Suppliers

Annual Registration Fee per supplier	US580,00

Roadcasting

Basic Licence Fee for three years –

(a)	Transport operator –	
	(i) Luxury buses	USD120,00, per vehicle per route *per annum*
	(ii) Other	USD20,00 per vehicle, per route, *per annum*
(b)	Programme provider	USD350,00, per route, *per annum*

Railcasting

Basic Licence Fee for three years –

(a)	Transport operator	USD3 500,00, per route, *per annum*
(b)	Programme provider	USD$3 500,00, per route, *per annum*

Temporary importation of broadcasting (production) equipment clearance

(a)	Local	USD$10,00
(b)	International	US$20,00

Temporary use of broadcasting service bands (Narrowcasting)

(a)	Per day	USD$120,00
(b)	Per month	USD$600,00".

3. The fees stipulated above may be payable in local currency at the foreign currency auction rate in terms of the Exchange Control (Exclusive use of Zimbabwe dollar for Domestic Transactions) (Amendment) Regulations, 2020, published in Statutory Instrument 185 of 2020.

Supplement to the Zimbabwean Government Gazette dated the 3rd June, 2022.
Printed by the Government Printer, Harare.